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February 19, 2025

By: Guthrie and Paxton

An Act relating to Oklahoma Today Magazine; amending 74 O.S. 2021, Section 2237, which relates to the creation of the Oklahoma Today Magazine Division; allowing the Oklahoma Tourism and Recreation Department to distribute magazine by electronic means; updating statutory language; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 2237, is amended to read as follows:

Section 2237. A. There is hereby created within the Oklahoma Tourism and Recreation Department, the "Oklahoma Today Magazine" Division. The Division shall be responsible for the publication of the "Oklahoma Today Magazine" a minimum of six times per year.

B. "Oklahoma Today Magazine" is hereby authorized to sell advertising. All advertising shall be approved by the appropriate division director prior to acceptance for publication.

C. In addition to a regular salary, any employee of the "Oklahoma Today Magazine" who obtains advertising, bulk subscription, newsstand, or ancillary product sales, for "Oklahoma Today Magazine", at the discretion of the Executive Director of the Department, may be awarded additional compensation in the form of a

1 commission on net sales by the employee. The commission shall not
2 exceed twenty-five percent (25%), with the commission percentage to
3 be determined by the Executive Director. In no case shall the
4 additional compensation, when combined with the salary of the
5 employee, exceed ninety-five percent (95%) of the salary of the
6 Executive Director. Commission payments shall be paid monthly,
7 based on collected revenues from sales by the employee.

8 D. The sale of advertising and negotiation of rates for the
9 advertising shall not be subject to ~~The~~ the Oklahoma Central
10 Purchasing Act ~~of 1974~~ or the Administrative Procedures Act.

11 E. "Oklahoma Today Magazine" articles, and photographs produced
12 by or for "Oklahoma Today Magazine", shall be available for public
13 inspection during Department business hours. The Department shall
14 not be required to provide copies or allow copying of the magazine,
15 articles, or photographs other than as the Department provides
16 copies of "Oklahoma Today Magazine" for newsstand and subscription
17 sales.

18 F. The Department may deliver copies of "Oklahoma Today
19 Magazine" by electronic means through the Department's subscription
20 sales.

21 SECTION 2. This act shall become effective November 1, 2025.

22 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
AND TOURISM

23 February 19, 2025 - DO PASS